

FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board, to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, May 10, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28017 against Police Officer Marc Fontana, Tax Registry No. 951741. The case was conferenced on April 30, 2024, before Assistant Deputy Commissioner of Trials Jeffrey Adler, who approved the negotiated penalty of a forfeiture of Twenty (20) vacation days after Police Officer Fontana's plea of guilty.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor APU

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28017
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

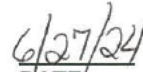
RANK/TITLE PO	SURNAME, FONTANA	FIRST MARC	M.I. A	COMMAND 070 PRECINCT
SHIELD NO. 16274	TAX REGISTRY NO. 951741	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Marc Fontana, on or about May 19, 2022, at approximately 0020, while assigned to 070 PCT and on duty, at 100 Church Street, New York County, provided a misleading statement to the Civilian Complaint Review Board, in that PO Fontana denied communicating to § 87(2)(b) that they could not record, as well as denying he used his arms to interfere with § 87(2)(b) recording device.	PLEADED GUILTY	VACATION DAYS 20.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.



FIRST DEPUTY COMMISSIONER



DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER


DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, June 27, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28017 against Police Officer Marc Fontana, Tax No. 951741 (CCRB Case No. 202107240), with the recommendation that Police Officer Fontana forfeit twenty (20) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement of forfeiture of twenty (20) vacation days; I concur.

Additionally, it must be noted that during the pendency of the underlying case, Police Officer Fontana also negotiated to resolve a separate matter under Disciplinary Case No. 2022-27176. The misconduct in that case stems from the same incident for which Police Officer Fontana negotiated a disciplinary penalty in the present case. Therefore, the undersigned recommends that the penalties in these two disciplinary cases be applied concurrently and that Police Officer Fontana forfeit a combined total of twenty (20) vacation days in Disciplinary Case Nos. 2022-27176 and 2023-28017. **RECOMMEND APPROVAL.**

DC Kinsella

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED

Edward A. Caban
JUL 16 2024
EDWARD A. CABAN
POLICE COMMISSIONER